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The Role of Religion in Transitional Justice

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Ex-Combatants, Religion, and Peace in Northern Ireland

The Role of Religion in Transitional Justice

John D. Brewer

Sixth-Century Professor of Sociology, University of Aberdeen, UK

David Mitchell

Research Associate, School of Communication, University of Ulster, UK

Gerard Leavey

*Professor and Director of the Bamford Centre for Mental Health,
University of Ulster, UK*

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John D. Brewer, David Mitchell, and Gerard Leavey © 2013

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Preface and Acknowledgements

This is a book about former combatants who were involved in Northern Ireland's post-1968 conflict, known colloquially as 'the Troubles'. Religiously motivated violence has long interested scholars and the general public, and there is a growing interest in the positive contributions to peace in Northern Ireland made by ex-combatants; many former combatants have also written autobiographies to explain their own personal journey to peacemaking. This volume is different in two respects. It is concerned, first, with the heady mix of armed struggle, religion, and peace, building into the focus a consideration of the mediating role of religion in the choice combatants made between violence and peace; and, secondly, it develops a framework for understanding the contribution of religion in transitional justice which is widely applicable to other conflicts in which religion is involved. It therefore expounds a general model for undertaking religious interventions in transitional justice based on a detailed analysis of a case from Northern Ireland that is interesting enough in its own right. This model will be interesting to transitional justice practitioners, religious actors, and academic researchers.

This focus is at once obvious and controversial. It is so obvious that it is surprising it has not been done before. Northern Ireland is an extremely religious society, and religion forms a part of political history and identity on the island of Ireland, so it would be unusual for ex-combatants *not* to engage with religion. However, the human rights tradition of transitional studies, which is the dominant paradigm and the one which motivates previous research on Northern Ireland's ex-combatants, neglects religion. Religion is seen as both outside the domain of human rights and, indeed, part of the problem that causes human rights abuses in the first place. We challenge this perspective by addressing ex-combatants' views on religion and the uses to which they put religion both during their combatant experiences and, afterwards, in the post-conflict phase.

Our focus is controversial for another reason. The work on religion in transitional justice studies is overwhelmingly from the United States, where it featured as part of the post-Cold War triumphalism of the end-of-history debates, in which the United States saw itself as the

last superpower standing and as representing the universalisation of democracy and political stability. Religion was made part of this triumphalism and was enthusiastically endorsed for its positive role in statecraft, diplomacy, peacebuilding, and transitional justice, amongst other things. While this volume may appear to be within this tradition of transitional justice studies by addressing the material and spiritual uses to which religion was put by Northern Ireland's ex-combatants, we challenge the easy, almost naive, simplicity of the way religion is treated in this US literature. We use the narratives of ex-combatants to portray that religion plays a much more ambivalent role, and is both a facilitator and a constraint in transitional justice. We address most of these concerns in the Conclusion, where we outline a conceptual framework that we feel better captures the difficulties and complexities of religion in transitional justice.

To get to that endpoint, however, we first explore, as our primary concern, the multiple uses to which religion is put by a sample of Northern Ireland's ex-combatants. We recognise that this is itself controversial. That combatants had religious belief may provoke *disbelief* amongst our readers. Some readers may appropriate what our respondents say in ways that confirm their every prejudice about people of the 'other religion', or consider what our respondents say as incredulous for people with the same religious convictions as themselves. We ask such readers to step outside their prejudices and suspend their incredulity and hear what our respondents are trying to say about the role of faith in their decisions to take up arms and then desist.

This volume looks at ex-combatants' engagement with both violence and the peace process through the perspective of religion. This religious dimension is approached in two ways – personal faith and the religious form through which 'the Troubles' was experienced in Northern Ireland. For people unfamiliar with 'the Troubles', the latter needs explanation. Though the substance of conflict was thoroughly political, religion was a cultural reality even for those who lacked personal faith, wrapped up in people's identity and sense of belonging. Religiosity describes the practice of religion, and religion the sense of identification and belief that may or may not prompt practice. Religion is relevant in Northern Ireland in this second sense even where there is no religious practice. We place this emphasis on religion because the growing literature on ex-combatants in Northern Ireland neglects the religious dimension. Ours is therefore not just another book about ex-combatants which appears now with some regularity; it is the only study so far to locate the tension within ex-combatants between armed struggle and non-violence within

a religious perspective. We see this volume as a contribution as much to our understanding of religious peacebuilding in Northern Ireland as to its ex-combatants.

However, this attention to ex-combatants makes this a fundamentally different book from the most recent one that documents the phenomenon of religious peacebuilding in Northern Ireland, *Religion, Civil Society and Peace in Northern Ireland* (Brewer, Higgins, and Teeney, 2011). It complements it by addressing two new issues: the contribution religion played in ex-combatants' transformation to a non-violent strategy; and ex-combatants' experience of the institutional churches' religious peacebuilding. Some of the themes of the earlier book on religious peacebuilding in Northern Ireland are taken up again here but looked at from the perspective of ex-combatants. And we come to the same gloomy conclusions about the contradictory role of religion (in this case, in ex-combatants' choice to desist from armed struggle) and the same highly critical judgement of the failure of the institutional churches (in this case, to assist ex-combatants in this transition). This is no better demonstrated than by two of our respondents, one a Republican ex-combatant who was told by a priest to 'fuck off' when he went to confession as a result of emotional anxiety; the other a Loyalist ex-combatant who said the mainstream Protestant ministers treated him as scum, like something disgusting found on the rich leather sole of their rather expensive Italian shoes. Narratives like this enrich this volume and we have tried to allow ex-combatants to speak in their own words.

We do not wish to suggest, by this focus on ex-combatants, that we undervalue victim issues or see victims as less important to the consolidation of Northern Ireland's peace process. The primary and main author, John Brewer, is leading a five-year project on victims funded by the Leverhulme Trust (see <http://www.abdn.ac.uk/compromise-conflict/>), making the focus here on ex-combatants symmetrical rather than one-sided, and done in the recognition that both constituencies, which overlap anyway, are critical if peace processes are to succeed (in Northern Ireland or elsewhere).

The original research on which this volume is based was undertaken on behalf of the Northern Ireland Association for Mental Health (NIAMH), where Gerard Leavey was formerly Director of Research, and was conducted in association with John Brewer and David Mitchell from the University of Aberdeen. Neither body is responsible for the views of the three authors expressed here. We thank Linda Emslie from the University of Aberdeen for paying attention to the finances. NIAMH saw this research as part of their wider commitment to build a flourishing

Northern Ireland but was also interested in exploring the mental well-being of former prisoners and the role of religion in assisting with it. Any consideration of the role of religion and spirituality in the lives of former prisoners, however, is forced to ask a wider set of questions about the contribution of religion to the conflict, its use as a symbolic resource in sustaining the violence, its role as a source of motivation as well as its function inside prison for those incarcerated. Religion is part of their pre-combatant life, as well as their lives inside and outside prison. The research therefore extended well beyond the narrow mental health concerns of NIAMH.

The research was conducted between October 2010 and September 2011, just before access to former combatants in Northern Ireland dried up in reaction to the Boston College affair in the United States, in which interviewees in an oral history project on the Northern Irish conflict conducted in the United States had their testimonies pored over by lawyers and the Northern Irish police looking into evidence for historical enquiries as a result of some salacious writing around their testimonies. The effect of the Boston College affair has been to make potential respondents clam up. We recognise how privileged we are, therefore, to have amongst the last open testimonies from ex-combatants for what could be a very long while.

John Brewer and Gerard Leavey were the principal investigators on the project and David Mitchell the research fellow primarily responsible for data collection. We are grateful to the Republican ex-prisoner organisations Tar Anall and Coiste for assistance in locating respondents willing to be interviewed, and to John Foster for helping us make contact. The assistance of Jim and Francis Teeney, Philip Orr, and Gary Mason in locating other respondents was invaluable. Above all, we are very grateful to all our respondents who kindly gave up time to allow us to infringe on their privacy and to talk about deeply sensitive and emotive issues. We are also grateful for the detailed comments of Francis Teeney on our arguments. We absolve everyone mentioned from any responsibility for the final argument.

We would like to take this opportunity to explain – and justify – our terminology. The term ‘ex-combatant’ is contested by former combatants themselves, in part because it suggests their times of active engagement are past, for even though they desist violence, they very much like to think of themselves as remaining involved in their community’s broader struggle for justice. But others believe it is a victor’s term (worse still, a favoured term of the British), used judgementslly to condemn. Some prefer the label ‘soldier’ for its obvious connotations of

legitimacy and respectability. The Irish Republican tradition has always favoured 'volunteer'. We apologise to our respondents where our terminology continues to offend but we wish to retain use of the term, precisely to link with the transitional justice literature on post-conflict societies, where the issue of the social reintegration of ex-combatants is recognised as one of the most important concerns in consolidating the peace and where the term is widely used in a neutral manner. We do not use it as a judgemental label; after all, the whole tenor of the Northern Irish peace process is that it is a negotiated settlement with no distinction between vanquished and victor. It is in this open spirit that we carried out this research – we do not undervalue the issue of victims, nor do we seek to privilege one constituency in the conflict over others. We happen to believe, however, that the transition from a military to a political strategy by former combatants is one of the chief achievements in a peace process and the role of religion in this choice is worthy of intellectual consideration. We use the term 'ex-combatant' as a way of honouring our respondents' choice towards peace.

John D. Brewer, David Mitchell, and
Gerard Leavey, Belfast

Series Editor's Introduction

Compromise is a much used but little understood term. There is a sense in which it describes a set of feelings (the so-called 'spirit' of compromise) that involve reciprocity, representing the agreement to make mutual concessions toward each other from now on: no matter what we did to each other in the past, we will act toward each other in the future differently as set out in the agreement between us. The compromise settlement can be a spit and a handshake, much beloved in folk lore, or a legally binding statute with hundreds of clauses.

As such, it is clear that compromise enters into conflict transformation at two distinct phases. The first is during the conflict resolution process itself, where compromise represents a willingness among parties to negotiate a peace agreement that represents a second-best preference in which they give up their first preference (victory) in order to cut a deal. A great deal of literature has been produced in Peace Studies and International Relations on the dynamics of the negotiation process and the institutional and governance structures necessary to consolidate the agreement afterwards. Just as important, however, is compromise in the second phase, when compromise is part of post-conflict reconstruction and reconciliation, in which protagonists come to learn to live together despite their former enmity and in face of the atrocities perpetrated during the conflict itself.

In the first phase, compromise describes reciprocal agreements between parties to the negotiations in order to make political concessions sufficient to end violence; in the second phase, compromise involves victims and perpetrators developing ways of living together in which inter-personal concessions are made as part of shared social life. The first is about compromises between political groups and the state in the process of statebuilding (or re-building) after the political upheavals of communal conflict; the second is about compromises between individuals and communities in the process of social healing after the cultural trauma provoked by the conflict. Reconciliation in the second phase is as protracted and difficult as in the first, and usually takes longer.

This book series primarily concerns itself with the second process, the often messy and difficult job of reconciliation, restoration and repair in

social and cultural relations following communal conflict. Communal conflicts and civil wars tend to suffer from the narcissism of minor differences, to coin Freud's phrase, leaving little to be split halfway and compromise on, and thus are usually especially bitter. The series therefore addresses itself to the meaning, manufacture and management of compromise in one of its most difficult settings. The book series is cross-national and cross-disciplinary, with attention paid to inter-personal reconciliation at the level of everyday life, as well as culturally between social groups, and the many sorts of institutional, inter-personal, psychological, sociological, anthropological and cultural factors that assist and inhibit societal healing in the array of post-conflict societies, historically and in the present. It focuses on what compromise means when people have to come to terms with past enmity and the memories of the conflict itself, and relate to former protagonists in ways that consolidate the wider political agreement.

This sort of focus has special resonance and significance for peace agreements are usually very fragile. Societies emerging out of conflict are subject to ongoing violence from spoiler groups who are reluctant to give up on first preferences, constant threats from the outbreak of renewed violence, institutional instability, weakened economies, and a wealth of problems around transitional justice, memory, truth recovery and victimhood, amongst others. Not surprisingly therefore, reconciliation and healing in social and cultural relations is difficult to achieve, not least because inter-personal compromise between erstwhile enemies is difficult.

Lay discourse picks up on the ambivalent nature of compromise after conflict. It is talked about in common sense in one of two ways, in which compromise is either a virtue or a vice, taking its place among the angels or in Hades. One form of lay discourse likens concessions to former protagonists with the idea of restoration of broken relationships and societal and cultural reconciliation, in which there is a sense of becoming (or returning) to wholeness and completeness. The other form of lay discourse invokes ideas of appeasement, of being *compromised* by the concessions, which constitute a form of surrender and reproduce (or disguise) continued brokenness and division. People feel they continue to be beaten by the sticks which the concessions have allowed others to keep; with restoration, however, weapons are turned truly into ploughshares. Lay discourse suggests, therefore, that there are issues that the *Palgrave Studies in Compromise after Conflict* series must begin to problematise, so that the process of societal healing is better understood and can be assisted and facilitated by public policy and intervention.

In the first book in the series, the authors focus on one of the most well-known and studied processes of conflict transformation in recent history, the ending of 'the Troubles' in Northern Ireland. Ex-combatants are a key constituency in the development of compromise, for their social reintegration is one of the major challenges facing the reconciliation process in societies emerging out of conflict. Policies toward re-integration, however, only serve to highlight the difficulties in garnering societal healing, for these policies are usually controversial and invariably provoke hostility from victims. Yet the decision among combatants to shift from a military to a political strategy is one of the key components of peace processes. The commitment of many ex-combatants to the peace process in Northern Ireland has been a recurring theme in much post-Troubles research. The focus in this book, however, is unusual, for in a detailed and rich ethnographic study with a cross section of Republicans and Loyalists, the authors address the use of religion as a spiritual and material resource in the transition to peace. They look specifically at its role in the lives of ex-combatants – their decision to take up arms, its role as a resource in the conduct of the military campaign, and its contribution to the decision to desist from violence. The authors conclude by usefully suggesting ways in which we might conceptualise the role of religion in transitional justice so that it can be better practised in other communal conflicts where religion is involved. The editor warmly welcomes this book to the *Palgrave Studies in Compromise after Conflict* series.

John D. Brewer
Aberdeen, January 2013